

**IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO**

State of Ohio, ex rel. Dave Yost,
Attorney General,

Plaintiff,

Case No. 20IN006-149

v.

JUDGE JAMES KIMBLER

The Landings Property Association, Inc., *et al.*,

Defendants.

Mullins Bros., Ltd.,

Defendant/
Third-Party Plaintiff,

v.

Carol A. Didinger, Trustee, *et al.*,

Third-Party Defendants.

**RESPONSES OF MULLINS BROS. LTD TO THE LONG DEFENDANTS REQUESTS
FOR ADMISSION**

Defendant Mullins Bros. Ltd. (“Defendant” or “Mullins Bros.”) hereby submits its Responses to the First Set of Requests for Admissions of The Long Defendants¹ subject to the General Objections and specific objections below.

¹ Angela J. Arumpanayil, Trustee; Al A. Balaa; Deborah Banda, Enon Banda; Cary S. Beck; Erika D. Beck; Andrea Belcher; Kenneth Belcher; Anita Bird, Trustee; Robert Boyd; Janet Boyd; Eric Lee Brown; Revecca M. Buckwalter; Aaron Burak; Allison Burak; Edwin L. Cable; Sandra M. Cable; Chu-Hsiang Chen; Yong-Hwa Chen; Karen L. Cherup; Matthew A. Cherup; Joseph R. Christopher; Cheryl K. Christopher; Christopher A. Clark; Kelly L. Clark; Marcell Codispoti; Peggy Codispoti; Paula C. Compton-Solie; Edward L. Cosby; Janice Cosby, Trustees; Derk D. Demaree; Anita M. Demaree; Joseph M. Depolo; Robin L. Depolo; Carol A. Didinger, Trustee; Mark Driftmyer, Trustee; Linda L. Fritz; Marilou M. Fritz; Peggy A. Gaddis; Donald L. Garvic; Andreas Giakoumas; Ypatia Giakoumas; James Goodrich; Diane Goodrich; Carolyn Gray; Gary Gray; Adrienne D. Harris; Jeffry D. Harris; Bharon Hoag; Heather Hoag; Shane Alan Kinton, Trustee; Laurie Ann Kirkpatrick, Trustee; Jennifer Lebold; Robert S. Lebold; Richard Littleton; Vicki Littleton; Mark A. Long; Denise A. Long; Jesse L. Marlow; Jane C. Marlow; Hewlet McFarlane; Angela N. Merryman; Scott T. Miglin; Susan D. Miglin; Mount Vernon Nazarene University; Stephen D. Mullendore; Jeanne C. Mullendore, Trustees; Chetan I. Patel; Chetna C. Patel; Douglas P. Peterson; Diana L. Peterson; Philip B. Petrie; Priscilla J. Petrie; Randolph B. Plasse; Tina M. Plasse; Bradley Porter; Tonya Porter; Brian Przeracki; Kenneth Rhoades; Mary Marjory Rhoades; Ralph Shafer; Mary Margaret Snow; Matthew Snow; Megan Snow; Phil Stopher; Ellen Stopher; Jeffrey Strickland; Rachel Strickland; Nancy Stull; Rodger Stull; Mark S. Tuel; Michael Ulrey; Rosemary Ulrey; Lawrence Vail; Nancy Vail; Alexander Varughese; Marcia J. Varughese; Brad Whitaker; Leslie Whitaker; Andrea White; Dianne L. Williams; Margaret B. Williams; and Timothy J. Williams

GENERAL OBJECTIONS

1. Defendant objects to the Discovery Requests insofar as they purport to impose any requirement or discovery obligation upon Defendant other than as set forth in the Ohio Rules of Civil Procedure and the Local Rules of the Knox County Court of Common Pleas.

2. Defendant objects to the Discovery Requests to the extent that they seek to discover any information protected by the attorney-client privilege, the attorney work-product doctrine, and any other applicable restriction upon discovery. Defendant expressly reserves the right to withhold such information without prejudice thereto. Any inadvertent disclosures shall not be deemed to constitute a waiver of any privilege.

3. These Responses are supplied for use in this lawsuit and for no other purpose and are supplied subject to that limitation. Defendant reserves the right to object on any ground and at any time to the use of Defendant's Responses or the subject matter thereof in this proceeding or any other proceeding.

4. Defendant reserves the right to object on any ground and at any time to other discovery requests or other discovery procedures involving or relating to the subject of the Discovery Requests.

5. Defendant reserves the right to make any changes to these Responses as further information becomes available. By this reservation, Defendant does not, however, assume a continuing responsibility to update its Responses beyond the requirements of the applicable rules and orders of the Court.

6. Defendant objects to the Discovery Requests to the extent that they are cumulative or duplicative.

7. Defendant objects to the Discovery Requests to the extent that they seek to impose on Defendant an obligation to investigate or to discover information or documentary materials

from third parties. Defendant will not undertake such an investigation or discovery, nor be responsible for producing information and/or documents in the possession, custody, or control of any other persons or non-parties.

8. Defendant objects to Plaintiff's "Definitions" to the extent that they purport to alter, amend, add to, diminish, or otherwise differ from any definitions or instructions set forth in the Ohio Rules of Civil Procedure or the Local Rules of the Knox County Court of Common Pleas.

9. Defendant objects to Plaintiff's "Instructions" to the extent that they purport to alter, amend, add to, diminish, or otherwise differ from any requirement or instructions set forth in the Ohio Rules of Civil Procedure or the Local Rules of the Knox County Court of Common Pleas.

10. Defendant objects to the Discovery Requests to the extent that they require words or phrases to be interpreted in a manner different from or inconsistent with their ordinary and customary meaning.

11. Defendant objects to the definition of "Documents" to the extent that it differs from the requirements set forth in the Ohio Rules of Civil Procedure or the Local Rules of the Knox County Court of Common Pleas.

12. Defendant incorporates each of these General Objections into the Responses below.

**DEFINITIONS FOR REQUESTS FOR ADMISSION AS PROVIDED BY THE
LONG DEFENDANTS**

1. "Dam" or "The Dam" refers to the Knox Cattle Company Dam located on a tributary to Center Run in Knox County, Monroe Township, Ohio.

2. "Lake" or "The Lake" is the reservoir created by the Dam.

3. "The Phase VII Declaration" means the Declaration of Building and Development Restrictions for the Landing Development Phase VII, Revised filed with the Knox County Recorder on March 22, 2005, at File Number 2005-00002853, Book No. 935, Page No. 640.

4. “The Phase VIII Declaration” means the Declaration of Building and Development Restrictions for the Landing Development Phase VIII filed with the Knox County Recorder on March 13, 2007, File Number 2007-00002401, Book No. 1069, Page No. 118.

5. “The Phase VII Development” means the land in The Landing Development, Phase VII, as described in the Phase VII Declaration and recorded in Plat Cabinet C, Page 24, of the Knox County, Ohio, Plat Records.

6. “The Phase VIII Development” means the land in The Landing Development, Phase VIII, as described in the Phase VIII Declaration and recorded in Plat Cabinet C, Page 60, of the Knox County, Ohio, Plat Records.

7. “This matter,” “this litigation,” “this action,” or “this case” mean case action number 20IN06-149, captioned State of Ohio ex rel. Dave Yost, Ohio Attorney General v. The Landings Property Owners Association, Inc., et al., presently pending before the Knox County Common Pleas Court of Ohio.

8. “Mullins Bros.” means Mullins Bros., Ltd.

9. “Cross-Claim” means the Cross-Claim asserted by Mullins Bros., Ltd. in this litigation against The Landings Phase VII Property Owners, and The Landings Phase VIII Property Owners.

10. The “Landings Phase VII Property Owners” means those individuals who own lots in The Landing Development, Phase VII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

11. The “Landings Phase VIII Property Owners” means those individuals who own lots in The Landing Development, Phase VIII, and who are listed in Exhibit 1 to the Third Amended Complaint filed in this litigation.

12. The “Landings Defendants” means The Landings Phase VII Property Owners, and

The Landings Phase VIII Property Owners, collectively.

13. The “Long Defendants” means those Landings Defendants who are identified in footnote 1 of this Request.

14. “Common properties” means the properties referred to in the Third Section of the Initial Articles of Incorporation for The Landings Property Owners Association, Inc., effective date April 1, 2005, under “Purpose for which corporation is formed”, where it states, “To hold, maintain and control the common properties of The Landings Phase VII and VIII.”

RESPONSES

REQUEST FOR ADMISSION NO. 1.

There was no document attached as Exhibit A to the Declaration of Building and Development Restrictions for the Landing Development Phase VII, Revised when it was recorded at the Knox County Recorder on March 22, 2005.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 2.

There was no Initial Articles of Incorporation attached as Exhibit A to the Declaration of Building and Development Restrictions for the Landing Development Phase VII, Revised when it was recorded at the Knox County Recorder on March 22, 2005.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 3.

There are no “common properties” located in The Phase VII Development.

ANSWER: Deny. The “common properties” of the Landings Phase VII and VIII Developments include the property where the Lake and a significant portion of the Dam was and is located at Parcel no. 66-09675.162. Additionally, the “common areas” include Parcel No. 66-09675.163.

REQUEST FOR ADMISSION NO. 4.

There are no “common properties” located in The Phase VIII Development.

ANSWER: Deny. The “common properties” of the Landings Phase VII and VIII Developments include the property where the Lake and a significant portion

of the Dam was and is located at Parcel no. 66-09675.162. Additionally, the “common areas” include Parcel No. 66-09675.163.

REQUEST FOR ADMISSION NO. 5.

The parcel of land on which the Lake and Dam are located is not part of The Phase VII Development.

ANSWER: Deny. The “common properties” of the Landings Phase VII and VIII Developments include the property where the Lake and a significant portion of the Dam was and is located at Parcel no. 66-09675.162. Additionally, the “common areas” include Parcel No. 66-09675.163.

REQUEST FOR ADMISSION NO. 6.

The parcel of land on which the Lake and Dam are located is not part of The Phase VIII Development.

ANSWER: Deny. The “common properties” of the Landings Phase VII and VIII Developments include the property where the Lake and a significant portion of the Dam was and is located at Parcel no. 66-09675.162. Additionally, the “common areas” include Parcel No. 66-09675.163.

REQUEST FOR ADMISSION NO. 7.

Mullins Bros., or Steve Mullins, never sent any communication of any kind to any lot owner in either The Phase VII Development or The Phase VIII Development.

ANSWER: Objection. The term “Communication” is vague and ambiguous. Further responding, deny. Upon information and belief, Mullins Bros. and/or Steve Mullins has communicated with at least one (1) lot owner in Phase VII or Phase VIII of The Landings Development. Steve Mullins knows and has met several of the landowners through purchase of their properties or otherwise.

REQUEST FOR ADMISSION NO. 8.

Mullins Bros., or Steve Mullins, never sent any communication of any kind to any lot owner in either The Phase VII Development or The Phase VIII Development regarding The Landings Property Owners Association, Inc.

ANSWER: Objection. The term “Communication” is vague and ambiguous. Further responding, deny. Upon information and belief, Mullins Bros. and/or Steve Mullins has communicated with at least one (1) lot owner in Phase VII or Phase VIII of The Landings Development. Steve Mullins knows and has met several of the landowners through purchase of their properties or otherwise, and has likely discussed the homeowners association in question.

REQUEST FOR ADMISSION NO. 9.

Mullins Bros., or Steve Mullins, never sent any communication of any kind to any lot owner in either The Phase VII Development or The Phase VIII Development regarding the Landings Common Area Association, Inc.

ANSWER: Objection. The term “Communication” is vague and ambiguous. Further responding, deny. Upon information and belief, Mullins Bros. and/or Steve Mullins has communicated with at least one (1) lot owner in Phase VII or Phase VIII of The Landings Development. Steve Mullins knows and has met several of the landowners through purchase of their properties or otherwise, and has likely discussed the homeowners association in question.

REQUEST FOR ADMISSION NO. 10.

Mullins Bros., or Steve Mullins, never took any action to require the owners of all lots in either The Phase VII Development or The Phase VIII Development to become members of a non-profit corporation known as the Landings Common Area Association, Inc.

ANSWER: Deny. On March 22, 2005, Mullins Bros. properly filed The Landings Phase VII Declarations with the Knox County Recorder at File No. 2005-00002853, Book No. 935, Page No. 640. Additionally, on March 13, 2007, Mullins Bros. filed the Landings Phase VIII Declarations with the Knox County Recorder at File Number 2007-00002401, Book No. 1069, Page No. 118. Each of these Declarations serve as restrictive covenants requiring membership in a homeowners association. Additionally, each lot owner signed an agreement at closing on his/her property by which they agreed to join “a homeowners association” whose purpose was to service the Dam and the Lake, among other requirements.

REQUEST FOR ADMISSION NO. 11.

Mullins Bros., or Steve Mullins, never took any action to require the owners of all lots either The Phase VII Development or The Phase VIII Development to become members of a non-profit corporation known as The Landings Property Owners Association, Inc.

ANSWER: Deny. Each lot owner signed an agreement at closing on his/her property by which they agreed to join “a homeowners association” whose purpose was to service the Dam and the Lake, among other requirements.

REQUEST FOR ADMISSION NO. 12.

Mullins Bros., or Steve Mullins, never created any entity known as the Landings Common Area Association, Inc.

ANSWER: Admit that the Landings Common Area Association, Inc. was never established in technical form. Deny that a non-profit corporation as contemplated by Section 4(B) of the Landings Phase VII and VIII Declarations was never properly formed, as Mullins Bros. established or caused to be established the Landings Property Owners Association, Inc., which was legally effective under the Landings Phase VII and VII Declarations and Ohio Law. Deny that Mullins Bros. did not require the owners of all lots in the Landings Development Phase VII to become members of The Landings Property Owners Association, Inc.

REQUEST FOR ADMISSION NO. 13.

No one has ever created an entity known as the Landings Common Area Association, Inc.

ANSWER: Admit that the Landings Common Area Association, Inc. was never established in technical form to the knowledge of Mullins Bros. Deny that a non-profit corporation as contemplated by Section 4(B) of the Landings Phase VII and VIII Declarations was never properly formed, as Mullins Bros. established or caused to be established the Landings Property Owners Association, Inc., which was legally effective under the Landings Phase VII and VII Declarations and Ohio Law. Deny that Mullins Bros. did not require the owners of all lots in the Landings Development Phase VII to become members of The Landings Property Owners Association, Inc.

REQUEST FOR ADMISSION NO. 14.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been members of any entity known as the Landings Common Area Association, Inc.

ANSWER: Admit that Mullins Bros. is not aware of evidence that any of the Long Defendants were a member of The Landings Common Area Association, Inc. only.

REQUEST FOR ADMISSION NO. 15.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been members of any entity known as The Landings Property Owners Association, Inc.

ANSWER: Deny. Upon information and belief, homeowners within Phase VII and Phase VIII were members of The Landings Property Owners Association, Inc. Further responding, at closing, homeowners within the Landings Development Phase VII and VIII signed an agreement requiring them to join

“a homeowners association.” Additionally, in 2011, Cloyd Yough filed tax exemption for the common properties of Phase VII and Phase VIII on October 26, 2011 as a trustee of the Landings Property Owners Association.

REQUEST FOR ADMISSION NO. 16.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been trustees of any entity known as the Landings Common Area Association, Inc.

ANSWER: Admit only as to The Landings Common Area Association, Inc.

REQUEST FOR ADMISSION NO. 17.

None of the Long Defendants have ever been officers of any entity known as the Landings Common Area Association, Inc.

ANSWER: Admit only as to The Landings Common Area Association, Inc.

REQUEST FOR ADMISSION NO. 18.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been directors of any entity known as the Landings Common Area Association, Inc.

ANSWER: Admit only as to The Landings Common Area Association, Inc.

REQUEST FOR ADMISSION NO. 19.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever paid any money to any entity known as the Landings Common Area Association, Inc.

ANSWER: Admit only as to The Landings Common Area Association, Inc.

REQUEST FOR ADMISSION NO. 20.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been trustees of any entity known as The Landings Property Owners Association, Inc.

ANSWER: Deny. In 2011, Cloyd Yough filed tax exemption for the common properties of Phase VII and Phase VIII on October 26, 2011 in his role as a trustee of the Landings Property Owners Association.

REQUEST FOR ADMISSION NO. 21.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been officers of any entity known The Landings Property Owners Association, Inc.

ANSWER: Deny. Upon information and belief, Jeff Harris and Derk Demaree served as presidents of the Landings Property Owners Association, Inc. Additionally, Cloyd Yough served as a trustee of The Landings Property Owners Association, Inc. Further responding, in 2011, Cloyd Yough filed tax exemption for the common properties of Phase VII and Phase VIII on October 26, 2011 in his role as a trustee of the Landings Property Owners Association.

REQUEST FOR ADMISSION NO. 22.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever been directors of any entity known as The Landings Property Owners Association, Inc.

ANSWER: Deny. Upon information and belief, Jeff Harris and Derk Demaree served as presidents of the Landings Property Owners Association, Inc. Additionally, Cloyd Yough served as a trustee of The Landings Property Owners Association, Inc. Further responding, in 2011, Cloyd Yough filed tax exemption for the common properties of Phase VII and Phase VIII on October 26, 2011 in his role as a trustee of the Landings Property Owners Association.

REQUEST FOR ADMISSION NO. 23.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have ever paid any money to any entity known The Landings Property Owners Association, Inc.

ANSWER: Deny. Upon information and belief, The Landings Property Owners Association Inc. had a bank account and paid dues. Jeff Harris and Derk Demaree served as presidents of the Landings Property Owners Association, Inc. Additionally, Cloyd Yough served as a trustee of The Landings Property Owners Association, Inc. Further responding, in 2011, Cloyd Yough filed tax exemption for the common properties of Phase VII and Phase VIII on October 26, 2011 in his role as a trustee of the Landings Property Owners Association.

REQUEST FOR ADMISSION NO. 24.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have any right of access to the Dam.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 25.

Mullins Bros. is not aware of any evidence that any of the Long Defendants have any access to the Lake.

ANSWER: Admit

REQUEST FOR ADMISSION NO. 26.

R.C. 1521.062 (K) provides, “The owner of a dam or levee shall notify the chief in writing of a change in ownership of the dam or levee prior to the exchange of the property.”

ANSWER: Admit that R.C. 1521.062(K) provides as stated above.

REQUEST FOR ADMISSION NO. 27.

Mullins Bros., Ltd. did not notify the chief of the Ohio Department of Natural Resources of a change in ownership of the Dam prior to the exchange of the Dam to The Landings Property Owners Association, Inc. on or about July 31, 2007.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 28.

Mullins Bros., Steve Mullins, or anyone on his behalf, never filed a corporate tax return for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 29.

Mullins Bros., Steve Mullins, or anyone on his behalf, never filed an annual report with the Ohio Department of Taxation for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 30.

Mullins Bros., Steve Mullins, or anyone on his behalf, never set up a bank account for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 31.

Mullins Bros., Steve Mullins, or anyone on his behalf, never applied for an employer identification number with the Internal Revenue Service for The Landings Property Owners Association, Inc.

ANSWER: Deny. Please see bank records produced with Mullins Bros. Responses to the Long Defendants Requests for Production.

REQUEST FOR ADMISSION NO. 32.

Mullins Bros., Steve Mullins, or anyone on his behalf, never maintained a record of members containing the name and address of each member, the date of admission to membership, and the class to which the member belongs for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 33.

Mullins Bros., Steve Mullins, or anyone on his behalf, never maintained correct and complete books and records of account, together with minutes of the proceedings of its incorporators, members, directors, and committees of the directors or members for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 34.

Mullins Bros., Steve Mullins, or anyone on his behalf, never held an annual meeting of voting members for the election of directors and the consideration of reports for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 35.

Mullins Bros., Steve Mullins, or anyone on his behalf, never took any action to appoint or elect any officers for The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 36.

Mullins Bros., Steve Mullins, or anyone on his behalf, never sent any request to any lot owner in either The Phase VII Development or The Phase VIII Development requesting payment of an assessment to The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 37.

Mullins Bros. is not aware of any evidence that any lot owner in either The Phase VII Development or The Phase VIII Development had any awareness of an entity known as The Landings Property Owners Association, Inc. before 2013.

ANSWER: Deny. Please see invoices for \$200 assessment produced with Mullins Bros. Responses to the Long Defendants Requests for Production. .

REQUEST FOR ADMISSION NO. 38.

Mullins Bros. acquired the property where the Dam is located on March 15, 2005, via Warranty Deed from Knox Cattle Company. This is reflected in the Knox County Recorder's office records at Book No. 934, Pages 587-591. Parcel 4 of the Deed (Knox County Tax Parcel No. 66-09675.162) describes the land where the Dam is located.

ANSWER: Admit. Additionally, the Long Defendants paid assessments to the homeowners association as evidenced by invoices. Please see Mullins Bros. Responses to the Long Defendants Requests for Production.

REQUEST FOR ADMISSION NO. 39.

On or about July 31, 2007, Mullins Bros. transferred its ownership of the Dam (Knox County Tax Parcel No. 66-09675.162) to The Landings Property Owners Association, Inc., via Quit Claim Deed, which was recorded with the Knox County Recorder's office on or about August 1, 2007, file no. 2007-00007572, Book No. 1091, Page Nos. 367-369. Parcel 1 of the Deed (Knox County Tax Parcel No. 66-09675.162) describes the land where the Dam is located.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 40.

The Knox County Auditor website lists The Landings Property Owners Association, Inc. as the owner of the Dam (Knox County Tax Parcel No. 66 09675.162).

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 41.

Mullins Bros. did not transfer any of its ownership of the land where the Dam is located (Knox County Tax Parcel No. 66-09675.162) to any of the Long Defendants, or any of their predecessors in title.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 42.

None of the Long Defendants have ever had any actual ownership interest in The Landings Property Owners Association, Inc.

ANSWER: Deny. Upon information and belief, Mullins Bros. admits that the Long Defendants were members of The Landings Property Owners Association, and as such, were required to pay a \$200.00 assessment.

REQUEST FOR ADMISSION NO. 43.

The Landings Property Owners Association, Inc. has never issued any shares or any other form of ownership interest in The Landings Property Owners Association, Inc.

ANSWER: Deny. Mullins Bros. can neither confirm nor deny this admission, as it was not a required member of the Landings Property Owners Association, Inc. To the extent a further response is required, Mullins Bros. admits that it is not aware of if the Landings Property Owners Association, Inc. ever issued shares.

REQUEST FOR ADMISSION NO. 44.

The Landings Property Owners Association, Inc. was terminated for failure to file a statement of continued existence on February 19, 2015.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 45.

The Landings Property Owners Association, Inc. is a non-profit Ohio limited liability company organized under the laws of the State of Ohio, and is a company with a cancelled status with the Ohio Secretary of State.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 46.

Mullins Bros., or Steve Mullins, never filed with the Ohio Secretary of State on the prescribed form a resignation of Steve Mullins as statutory agent for The Landings Property Owners

Association, Inc., and did not send a copy of the notice to The Landings Property Owners Association, Inc.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 47.

Steve Mullins, a member of Mullins Bros., received a letter dated October 14, 2009 from David Hanselmann, Chief, Division of Soil and Water Resources, Ohio Department of Natural Resources, with a salutation, "Dear Dam Owners" ("The 2009 Dam Owners Letter").

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 48.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, or anyone on his behalf, contacted Jim Huitger or anyone else at the Ohio Department of Natural Resources to say that neither Steve Mullins nor The Landings Property Owners Association owned the Dam.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 49.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, or anyone on his behalf, contacted Jim Huitger or anyone else at the Ohio Department of Natural Resources to say that there were any additional owners of the Dam.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 50.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, or anyone on his behalf, contacted any lot owner in either The Phase VII Development or The Phase VIII Development to inform them of the content of The 2009 Dam Owners Letter.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 51.

After Steve Mullins received The 2009 Dam Owners Letter, neither Mullins Bros., or Steve Mullins, contacted any lot owner in either The Phase VII Development or The Phase VIII Development to inform them that the State of Ohio had changed the classification of the Dam to Class I.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 52.

Mullins Bros. did not take any action to maintain the Lake or the Dam in 2005, 2006, or 2007.

ANSWER: Deny. Upon information and belief, Mullins Bros. paid for lawn maintenance of the common areas. Please see Mullings Bros. responses to the Long Defendants Requests for Production.

REQUEST FOR ADMISSION NO. 53.

Mullins Bros. did not pay any property taxes for the land where the Lake and the Dam were located (Knox County Tax Parcel No. 66-09675.162), in 2005, 2006, or 2007.

ANSWER: Deny. Upon information and belief, property taxes were included in the entire property for the Landings Development Phases VII and VIII.

REQUEST FOR ADMISSION NO. 54.

Mullins Bros. did not do any investigation of the responsibilities of a dam owner under Ohio law at any time before 2020.

ANSWER: Admit.

REQUEST FOR ADMISSION NO. 55.

Mullins Bros. never paid an annual inspection fee to the Ohio Division of Water Resources for the land where the Lake and the Dam were located (Knox County Tax Parcel No. 66-09675.162).

ANSWER: Mullins Bros. admits it did not pay an inspection fee to the Ohio Division of Water Resources for the Lake and Dam because no such fee was assessed.

REQUEST FOR ADMISSION NO. 56.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development had a Declaration attached to it when it was recorded with the Knox County Recorder.

ANSWER: Mullins Bros. admits that the deeds conveying lots in Phase VII and VIII did not include a Declaration. Mullins Bros. denies that the Long Defendants were not aware of the Declarations, as the Phase VII and VIII Declarations were properly filed with the Knox County Recorder and each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join a homeowners association tasked with maintaining the Lake and Dam, among other requirements.

REQUEST FOR ADMISSION NO. 57.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having to pay an annual assessment.

ANSWER: Mullins Bros. admits that the deeds conveying lots in Phase VII and VIII did not include a Declaration. Mullins Bros. denies that the Long Defendants were not aware of this requirement, as the Phase VII and VIII Declarations were properly filed with the Knox County Recorder and each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join a homeowners association, and pay an assessment for maintaining the Lake and Dam, among other requirements.

REQUEST FOR ADMISSION NO. 58.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having any potential liability for maintenance of a lake or dam.

ANSWER: Mullins Bros. admits that the deeds conveying lots in Phase VII and VIII did not explicit reference to liability. Mullins Bros. denies that the Long Defendants were not aware of the potential for liability, as the Phase VII and VIII Declarations were properly filed with the Knox County Recorder and each homeowner signed an acknowledgment of the deed restrictions, and potential liability for maintenance of the Lake and Dam.

REQUEST FOR ADMISSION NO. 59.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having to become a member of a non-profit corporation.

ANSWER: Mullins Bros. admits that the deeds conveying lots in Phase VII and VIII did not include language regarding the homeowners association. Mullins Bros. denies that the Long Defendants were not aware of this requirement, as the Phase VII and VIII Declarations were properly filed with the Knox County Recorder and each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join a homeowners association, among other requirements.

REQUEST FOR ADMISSION NO. 60.

None of the deeds signed by Mullins Bros. to convey lots in either The Phase VII Development or The Phase VIII Development contain any language about the grantee having to pay an annual assessment.

ANSWER: This request is duplicative with Request No. 57. Mullins Bros. admits that the deeds conveying lots in Phase VII and VIII did not include reference to an annual assessment. Mullins Bros. denies that the Long Defendants were not aware of this requirement, as the Phase VII and VIII Declarations were properly filed with the Knox County Recorder and each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join a homeowners association, and pay an assessment for maintaining the Lake and Dam, among other requirements.

REQUEST FOR ADMISSION NO. 61.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a homeowners association.

ANSWER: Deny. In addition to the Phase VII and VIII Declarations which were properly filed with the Knox County Recorder, each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join a homeowners association, among other requirements.

REQUEST FOR ADMISSION NO. 62.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about a requirement to pay \$200 a year.

ANSWER: Deny. In addition to the Phase VII and VIII Declarations which were properly filed with the Knox County Recorder, each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join a homeowners association and pay an annual assessment, among other requirements.

REQUEST FOR ADMISSION NO. 63.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants about the Landings Common Area Association, Inc.

ANSWER: Deny. In addition to the Phase VII and VIII Declarations which were properly filed with the Knox County Recorder, each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join “a

homeowners association,” which was intended to be the same homeowners association in the Deed Restrictions and established by or at the direction of Mullins Bros.

REQUEST FOR ADMISSION NO. 64.

Mullins Bros. does not have in its possession, custody or control any documents related to, touching upon, mentioning, or in any way reflecting any alleged acknowledgement by any of the Landings Defendants that the Landings Common Area Association, Inc. shall have the sole and exclusive control of the lake located on the land of the Developer and shall be responsible for its care and maintenance.

ANSWER: Deny. In addition to the Phase VII and VIII Declarations which were properly filed with the Knox County Recorder, each homeowner signed an acknowledgment of the deed restrictions, and the requirement to join “a homeowners association,” which was intended to be the same homeowners association in the Deed Restrictions and established by or at the direction of Mullins Bros. This homeowners association has sole and exclusive control of the lake, and is responsible for its maintenance.

Respectfully submitted,

/s/ Kelli J. Amador

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Counsel for Cross-Claim Plaintiff and Cross-Claim Defendant, Mullins Bros. Ltd.

CERTIFICATE OF SERVICE

I hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic or regular mail this 28th day of November 2023.

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/s/ Kelli J. Amador

Kelli J. Amador (0095550)

VERIFICATION

STATE OF OHIO,

COUNTY OF _____, SS:

I, _____, being first duly sworn, state that the answers to the *Long Defendants' Request for Admissions to Defendant/Third-Party Plaintiff Mullins Bros., Ltd.* are true to the best of my knowledge, or believe them to be true based upon information made available to me.

MULLINS BROS., LTD.

By: _____

Its: _____

SWORN to and subscribed before me this _____ day of _____, 2023.

NOTARY PUBLIC